

SENATE BILL 2539

By Hatcher

AN ACT to amend Tennessee Code Annotated, Title 29;
Title 36 and Title 37, relative to children.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 36-6-106, is amended by adding the following as new subsections:

(g)

(1) The doctrine of res judicata does not preclude admission of evidence concerning a parent's or caregiver's conduct that occurred prior to the entry of the most recent parenting plan, when such evidence is relevant to the child's best interest.

(2) As used in this subsection (g), "evidence" includes, but is not limited to, sworn testimony, medical or mental health records, psychological evaluations, police reports, child protective services records, school or childcare records, audio, video, or photographic documentation, expert witness findings, previous court dockets, and any documentation or credible reporting by professionals mandated to report child abuse or neglect.

(h) In determining the best interest of the child, courts shall give highest weight to credible evidence of physical abuse, sexual abuse, or domestic violence. The weight must be applied equally to abuse committed against any member of the child's household, including siblings, half-siblings, foster siblings, and step-siblings.

(i) A court that issues a custody order, including a temporary order, must take into consideration the restrictions in § 36-6-406.

(j) There is a presumption that placement with a parent who has been found to have committed physical abuse, sexual abuse, or domestic violence is not in the best interest of the child. If a court issues a custody order placing a child with a parent who has been found to have committed physical abuse, sexual abuse, or domestic violence, then the court must include in its order written findings including why the presumption is rebutted. Prior to issuing such an order, the court shall review any available protective services records regarding the child who is the subject of the order.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.